

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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MAMADOU JALLOH,

Plaintiff,

-against-

Plaintiff designates
New York County as the
place of trial

Basis of venue is
county of occurrence

SUMMONS

THE CITY OF NEW YORK,
NYPD DETECTIVE JESUS CAPO and
NYPD OFFICER JESSE PULICE,

Defendants.

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To the above-named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
July 5, 2022

SIVIN, MILLER & ROCHE, LLP

By Edward Sivin

Edward Sivin
Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

To:

THE CITY OF NEW YORK, 100 Church St., New York, NY 10007

NYPD DETECTIVE JESUS CAPO, c/o NYPD Criminal Enterprise Unit, One Police Plaza, New York, NY 10038

NYPD OFFICER JESSE PULICE, c/o NYPD 32nd Police Pct., 250 W. 135th St., New York, NY 10030

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

MAMADOU JALLOH,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK,
NYPD DETECTIVE JESUS CAPO and
NYPD OFFICER JESSE PULICE,

Defendants.

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Plaintiff, by his attorneys SIVIN, MILLER & ROCHE, LLP, as and for his
complaint herein, alleges as follows, upon information and belief:

THE PARTIES

1. That at all times herein mentioned, plaintiff was and is a resident of the County of
New York, City and State of New York.

2. That at all times herein mentioned, defendant The City of New York (hereinafter
“the City”) was and is a municipal corporation, duly organized and existing under and by virtue of
the laws of the State of New York.

3. That prior to the institution of this action and within ninety (90) days from the
dates when the causes of action accrued herein, a notice of claim and intention to sue was duly
served upon and filed with defendants on behalf of plaintiff; that this action was not commenced
until the expiration of thirty (30) days after such notice of claim and intention to sue was presented
and defendants have neglected and/or refused to make adjustment or payment thereon, and this
action is being commenced within one year and ninety days after the causes of action accrued
herein.

4. That at all times herein mentioned, the City operated, controlled, managed, and maintained the New York Police Department (hereinafter the “NYPD”).

5. That at all times herein mentioned, defendant NYPD DETECTIVE JESUS CAPO (hereinafter “Capo”) was and is a police detective employed by the NYPD.

6. That at all times herein mentioned, Capo was acting within the course and scope of his employment with the NYPD.

7. That at all times herein mentioned, Capo was acting under color of state law.

8. That at all times herein mentioned, defendant NYPD OFFICER JESSE PULICE (hereinafter “Pulice”) was and is a police officer employed by the NYPD.

9. That at all times herein mentioned, Pulice was acting within the course and scope of his employment with the NYPD.

10. That at all times herein mentioned, Pulice was acting under color of state law.

THE FACTS

11. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

12. That on or about January 18, 2017, in the County of New York, City and State of New York, plaintiff was physically attacked by an individual named Gregory Hamilton (hereinafter “Hamilton”).

13. That during the attack, Hamilton reached for a gun with his left hand into the left-hand pocket of his trousers, and the gun then discharged a bullet into Hamilton’s body.

14. That on or about January 27, 2017, the City of New York, by and through its officers and detectives, including but not limited to Capo and Pulice (hereinafter referred to collectively as “the officers”) initiated and/or caused to be initiated a prosecution of plaintiff in which plaintiff, without probable cause, was charged with Attempted Murder in the Second Degree

and Assault in the First Degree in connection with the self-inflicted bullet wound sustained by Hamilton.

15. That in support of the prosecution, the officers knowingly conveyed false information and evidence to prosecutors and to fellow officers.

16. That the false information and evidence were material in nature, and were of the type that would likely influence a judge and/or jury that plaintiff was guilty of various crimes.

17. That in support of the prosecution, the officers knowingly withheld exculpatory evidence from prosecutors, fellow officers, and plaintiff.

18. That among the false information and evidence knowingly conveyed to prosecutors and to fellow officers were the following: 1) Capo represented to the District Attorney that there existed an independent witness or witnesses who saw plaintiff shoot Hamilton; 2) Capo represented to the District Attorney and in support of an application to obtain a search warrant that plaintiff tampered with a witness and attempted to prevent police officers from being shown a videotape of the shooting; 3) Capo represented to the District Attorney, and in sworn Grand Jury testimony, that he did not have any information as to whether Hamilton was right-handed or left-handed, when in fact Capo had information that Hamilton was left-handed.

19. That among the exculpatory evidence knowingly withheld by the officers from prosecutors and fellow officers was a pair of pants worn by Hamilton at the time of the shooting, which pants would have undercut the claim that plaintiff shot Hamilton, and would have supported the claim that Hamilton's injury was a self-inflicted bullet wound.

20. That the officers also knowingly failed to voucher Hamilton's pants, while vouchering other items of Hamilton's clothing.

21. That in support of the prosecution, Capo signed a Criminal Court Complaint in

which plaintiff was charged with Attempted Murder in the Second Degree and Assault in the First Degree, charges that were false and that Capo knew to be false.

22. That as a result of the aforesaid actions by the officers, plaintiff was prosecuted for crimes of which he was innocent and of which the officers did not have probable cause to believe plaintiff was guilty.

23. That as a further result of the aforesaid actions by the officers, plaintiff suffered significant deprivations of his liberty, including but not limited to being subjected to a prohibitively high bail, being incarcerated for approximately twenty months, having to make numerous court appearances, and being criminally prosecuted for over four years.

24. That on or about September 23, 2021, all criminal charges against plaintiff were dismissed and the criminal proceeding terminated favorably to plaintiff.

25. That at all times herein mentioned, Capo and Pulice observed and/or had knowledge of the illegal and unconstitutional conduct of their fellow officers, had reasonable opportunities to intervene to prevent and/or stop that conduct, but deliberately failed to intervene.

26. That defendants' actions were intentional, malicious, and without excuse or justification.

27. That as a result of the actions of defendants, plaintiff sustained severe emotional distress and loss of liberty, endured and will continue to endure pain and suffering and loss of enjoyment of life, incurred and will continue to incur economic loss, and sustained other damages.

28. That all of the causes of action herein fall within one or more of the exceptions set forth in CPLR Article 16 with respect to joint and several liability.

FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Malicious Prosecution Under State Law)

29. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

30. That the aforementioned actions of the officers in prosecuting plaintiff and/or causing plaintiff to be prosecuted for crimes of which the officers knew plaintiff to be innocent constituted a malicious prosecution of plaintiff, for which the officers are liable under New York State law and for which the City is vicariously liable under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION AGAINST THE OFFICERS
(42 U.S.C. § 1983: Malicious Prosecution)

31. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

32. That the aforementioned actions of the officers in prosecuting plaintiff and/or causing plaintiff to be prosecuted for crimes of which the officers knew plaintiff to be innocent constituted a malicious prosecution of plaintiff and an unlawful seizure of plaintiff in violation of plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution, and entitle plaintiff to recover damages under 42 U.S.C. § 1983.

THIRD CAUSE OF ACTION AGAINST THE OFFICERS
(42 U.S.C. § 1983 Claim Based on Denial of Right to Fair Trial)

33. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

34. That the aforesaid actions by the officers in conveying false information and evidence against plaintiff, and in withholding exculpatory evidence, constituted a denial of

plaintiff's right to a fair trial, in violation of plaintiff's rights under the Fifth, Sixth and Fourteenth Amendments to the United States Constitution, and entitle plaintiff to recover monetary damages under 42 U.S.C. § 1983.

FOURTH CAUSE OF ACTION AGAINST THE OFFICERS
(42 U.S.C. § 1983 Claim Based on *Brady* Violation)

35. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

36. That the aforesaid actions by the officers in withholding exculpatory evidence and information constituted a violation of plaintiff's rights under the Fourteenth Amendment to the United States Constitution and under *Brady v. Maryland*, 373 U.S. 83, and entitle plaintiff to recover monetary damages under 42 U.S.C. § 1983.

FIFTH CAUSE OF ACTION AGAINST THE OFFICERS
(42 U.S.C. § 1983 Claim Based on Failure to Intervene)

37. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

38. That as a result of the deliberate failure of the officers to intervene, plaintiff sustained the injuries alleged herein and is entitled to recover damages against the officers under 42 U.S.C. § 1983.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on the foregoing causes of action for compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and for punitive damages against the officers, and attorney's fees against the officers pursuant to 42

U.S.C. § 1988, and plaintiff also demands the costs and disbursements of this action.

Dated: New York, New York
July 5, 2022

Yours, etc.
SIVIN, MILLER & ROCHE, LLP

By Edward Sivin

Edward Sivin
Attorneys for plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) currently is not in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
July 5, 2022

Edward Sivin

EDWARD SIVIN